

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8a-ruq7-lick
Comments Due: March 15, 2025
Submission Type: API

Docket: NSF_FRDOC_0001
Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479
Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-3051
Comment on FR Doc # 2025-02305

Submitter Information

Name: Cyrus Johnson, Esq.

General Comment

This white paper addresses artificial intelligence in the field of Law.

I am a lawyer and AI for Law builder in Dallas, Texas.

America must lead in the realm of AI for Law, just as it has in law for almost 250 years.

Attachments

Open Source America AI for Law Worldwide

OPEN SOURCE AMERICA
LAW EXPRESSED AS/IN ARTIFICIAL INTELLIGENCE
A HUMAN IMPERATIVE

WHITE PAPER
ON THE NECESSITY OF AMERICA
TO RECOGNIZE AI'S FUNDAMENTAL ROLE
IN THE PROTECTION AND TRANSMISSION
OF FUNDAMENTAL HUMAN LIBERTIES
IN LAW AS ARTIFICIAL INTELLIGENCE

SIX PROPOSALS

March 15, 2025

By Cyrus J. Johnson, Esq.
Texas and California Attorney

Introduction and Executive Summary

Americans must lead the world in AI for Law. The most American AI systems will be the best systems for ensuring accuracy and human freedom for all.

Regarding the Law, which binds all around the globe in various jurisdictions, one thing is absolutely clear that with respect to Artificial Intelligence, its impact on Law belongs to all, not just to lawyers and the legal profession. Because it will touch all, either from their own use of LLMs or related tools, or for its inclusion of these tools' datasets.

Since it is a first-of-its-kind omni-data omni-tool which is capable of absorbing, interpreting, reformulating, and communicating data, it is a technical (not even legal) reality that it will impact Law which is comprised of documents, words, rules, and factual and legal precedents.

The ways in which Law is accessed, used and delivered by practitioners, determined by courts, drafted by legislatures, implemented, enforced, and understood has fundamentally changed overnight with the advent of data's and every network's and the Internet's single most powerful technology.

People will now access the Law in a wholly new way with AI. It represents not an addition to the well-understood profession and practice of law. It represents an entirely new modality. Retail, DIY, self-directed Law for the first time in history.

History and the world's bulwark for individual civil liberties, due process, and sound administration of justice, the United States must take a leadership role in beginning (and remaining actively in) this discussion and in shaping content norms which can see technology as an effective engine for liberty and freedom worldwide, creating a more just world.

Today and tomorrow, freedom through Law will now be expressed and accessed in technology primarily as Artificial Intelligence.

This is not only *in* America's interest. This *is* America's ontological interest (purpose) today and in history.

Americans must embrace an open source methodology with respect to AI for Law – individual freedom expressed – through Law – globally (now) inside Artificial Intelligence.

On American Ontology of Freedom in History

America is the expression of human freedom in history. Human freedom in history is America.

America has long been regarded as the leader in the advancement of human freedom in the world. It is a role rooted in its founding principles, which are drawn from the highest historical learnings of government, freedom, and philosophy.

These are reinforced in the design of its official documents and state systems. The Declaration of Independence (1776) and the United States Constitution (1789) and the Bill of Rights (1791) proclaim fundamental inalienable rights to “life, liberty, and the pursuit of happiness.”

These were and are national ideals. Yet these are first and always human ideals -- the rights of all endowed by virtue of their very lives are the basis of these. And so, they are protected to all Americans, and yet also apply to every person in the world.

To the world, these public declarations and protections were groundbreaking and have over centuries served as inspiration for other nations wishing to ensure freedom and liberty for their people.

The United States Constitution is the shortest, and longest enduring national governing document in history. It is fundamentally different from other governing documents in the world, and of history. It does not declare what the people may or may not do. It declares and binds the government itself, on what it may do and not do. And it reserves any and all non-delegated legal prerogatives to the people. And it states that in case of controversy, that the rights of the people govern first and primarily.

This system has endured for nearly 250 years, despite the obvious raucousness of the bold proposition that a diverse people shall be in charge. It alone has brought order to disorder in the world not by restraining people, but by restraining a state's control over the people.

Finally, since these are human principles and not only American principles, over history America has taken a leadership role whenever it became clear that freedom or liberty were endangered anywhere in the world. This led to its costly participation in the Second World War, to its leadership thereafter rebuilding Europe with the Marshall Plan, to more recent wars in Asia and the Middle East.

A freer world is a safer and more stable world, for America and for everyone. Freedom in the Law, re-stated inside every Artificial Intelligence “dataset” worldwide, is a human imperative.

What has AI to do with America and the Law?

Increasingly, humankind is uniting across borders through the facility of technology. Examples of companies like Facebook, Google, and more, serve to erase geography and nation and now (due to maturation of real time translation technologies, including AI ones) language barriers and cultural ones.

With respect to human data, this surely means what I have called a GUDA (Global Unified Data Age) AKA “The Great Collation.”

AI technologies are “absorbing” all the content of humankind from all the ages. And today. And tomorrow.

Humanity through AI will succeed in creating, through diverse companies (LLMs) or national efforts (China) one dataset of humankind.

The implications are myriad. This paper deals only with the impact on Law and legal technology.

With respect to Law, imagining a database of Law which is cross-border, culturally agnostic, and jurisdiction and legal-system agnostic – there is a great risk/temptation that popular interpretation

of data will overcome realities of Law, and this is no more important than in the area of fundamental American (human) civil liberties.

One can imagine various lawful statutes, or even Constitutional Principles, re-interpreted (or mis-interpreted) accidentally or purposefully – and those rights nullified in popular practice even if doing so was not legally sound.

It is the difference between what we understand in the law as *de jure* (what the law is) and *de facto* interpretation (how the law is applied actually).

With respect to fundamental human civil liberties, on which America had led and continues to lead, the risk that AI technologies could “nullify” in interpretation or administration is too great to risk. For technology could undo and quickly what has been done for the good of humanity.

What is the solution to this risk with respect to Artificial Intelligence and Law?

Open Source America, in the form of an omni-national technology leadership (AI), in every place, and in every dataset, anywhere where human freedom wishes to reign. American freedom through accurate statement of Law as required data.

In order to preserve the rights of man, as artificial intelligence technologies anywhere continually “capture” it and “state (or misstate)” it, American leadership is thus not only essential to the success (and a nation’s success at) a technology which stands poised to do the greatest amount of good since the Internet, but moreover, one which will determine the freedom of Americans and humankind on a going forward basis.

Six Recommendations for American AI + Law:

1. **AI Law is Preferential.** In large measure, code has been written by non-Law trained persons which content may or may not accurately accord with the Law. Law is not

just “one other kind of AI.” Since it alone arbitrates human freedom and rights, it is a special privileged class of AI. AI for Law should have preference in AI policy. And, in order to create accurate artificial intelligence tools for America, lawyers and the legal community must be prioritized in the creation the tools and systems today and tomorrow.

2. **Law as Human Good. AI in Law should *not* be automatically classed as “high risk.”** In many places, such as the European Union, permitting structures are proposed due to the presumed risk that Law is an “area of potential harm/risk.” While there are certainly risks in misapplication or misunderstanding of law, setting up a state-system to “pick winners and losers” in which companies or persons shall “write” the AI disserves the cause of Law, and the freedom of the people.

This is because those chosen naturally act in their own (pecuniary) self-interest. And if freedom is the ultimate good of American law, the only risk is that a place which wants to inhibit human freedom would classify American AI tools as “high risk” in order to block access. Freedom is not a risk. Lack of freedom is a risk.

3. **Global US AI Law. Cross-border (international) access to American AI for Law tools should be legally presumed.** In the prior technological regime of the Internet, countries would establish national requirements for websites. This meant that large corporations have been required to have a different website for each country. Such restrictions applied to AI for Law will only compromise both the AI and the Law. American Law AI tools, and American Law AI content, should flow freely to any place they are desired by the people, without inordinate state restrictions.

4. **Digital All of Law. Begin a national initiative to digitize all American Law.** As the world has moved into a digital era with the Internet, there is a preference for not relying on “dusty old books.” And yet in our older Law tomes are contained some of the most important “secrets” of the Law which free humankind. These must all be captured and made available to the people for the cause of American and

human successful exercise of fundamental human freedom.

The Internet age of the last generation saw much of this digitization done by private interests. Often private company interests (some non-American) obtain then license (for a fee, and with restrictions) Law materials. Since the Law, and access to same, belongs to every American and free person as a human right, a national initiative to scan capture and “Free the Law” for access and study by all must be a priority.

5. America.GPT or AmericaLLM All of American Law should be made available online to the people conversatively using AI

technologies. Each state and county hosts at public expense law libraries. These are to endure the people’s lawful easy and public access to the Law which governs them. For the first time in history, it is possible to capture all these materials (as above) and give the citizen (or anyone in the world seeking freedom) access via artificial intelligence chat. There is no good reason why this legal requirement, and “freedom grower” should not be created.

6. **Liberty in Every Dataset.** It should be policy to embed, to the extent and with the means possible, American legal principles inside of every AI tool in the world. Because these represent the “highest technology in human freedom,” as determined by history, it is a manifest good for humanity, and in America’s interest to see that these principles be included for access by all around the world.

Author: Cyrus Johnson is a business and civil liberties attorney for almost 23 years with practices in Texas and California. As he sees AI as the next “expression” of Law in America and the world, he is also an AI for Law engineer and tool builder.